

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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ANDREW TOOMER,

Plaintiff(s),

-against-

SUMMONS

Plaintiff resides at:

420 Adelphi Street, Apt. G
Brooklyn, New York 11238

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JEREMY
LUCCA, SHIELD #12731 OF EMERGENCY SERVICE
UNIT K9 and POLICE OFFICER LUIS FERNANDEZ,
SHIELD #22932 OF POLICE SERVICE AREA 2,

Defendant(s),

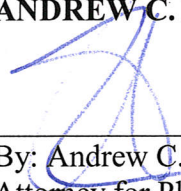
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
May 12, 2017

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER JEREMY LUCCA, SHIELD # 12731
c/o EMERGENCY SERVICE UNIT K9
1000 Sutter Avenue
Brooklyn, New York 11208

POLICE OFFICER LUIS FERNANDEZ, SHIELD #22932
c/o POLICE SERVICE AREA 2
560 Sutter Ave,
Brooklyn, NY 11207

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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ANDREW TOOMER,

**VERIFIED
COMPLAINT**

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JEREMY
LUCCA, SHIELD #12731 OF EMERGENCY SERVICE
UNIT K9 and POLICE OFFICER LUIS FERNANDEZ,
SHIELD #22932 OF POLICE SERVICE AREA 2,

Defendant(s),

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned the plaintiff was a resident of the County of Brooklyn, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned the defendants, POLICE OFFICER JEREMY

LUCCA, SHIELD #12731 OF EMERGENCY SERVICE UNIT K9 and POLICE OFFICER LUIS FERNANDEZ, SHIELD #22932 OF POLICE SERVICE AREA 2 were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That prior to the institution of this action, a notice of claim was duly served upon and filed with the city on behalf of plaintiff.

6. That on or about May 4, 2017 a hearing was held by the City pursuant to municipal law 50H.

7. That at all time herein mentioned the officers were acting within the scope and course of their employment with the New York Police Department, and under color of state law.

8. That at all times herein mentioned, all of the actions of the officers alleged herein was done within the scope and course of his employment with the New York Police Department, and under color of the state law.

9. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FACTS COMMON TO ALL CAUSES OF ACTION

10. On or about February 23, 2016 at approximately 9:30 p.m., while the plaintiff was placed under arrest by the defendants at the Rockaway Avenue subway station, Brooklyn, New York, the defendants did use their hands, feet, deployed weapons such as collapsible batons and proceeded to beat the plaintiff about his head and body. The use of force engaged in by the defendants was unreasonably excessive and constituted an assault and battery upon the plaintiff. As a result, the plaintiff did suffer serious and significant wounds requiring hospitalization. Plaintiff did not resist arrest.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE ASSAULT,
BATTERY, AND USE OF EXCESSIVE FORCE UPON PLAINTIFF

11. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

12. That on or about February 23, 2016 at approximately 9:30 p.m., the Defendants, jointly and severally in their capacity as a police officers, wrongfully seized, assault, and battered the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to seize, assault, and batter Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

13. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, and Fourteenth Amendments and New York State law.

14. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

15. That by reason of the excessive force, assault, and battery of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain and injury in both mind and body, and to sustain economic loss, and was otherwise damaged.

16. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING, RETENTION, AND TRAINING
UNDER NEW YORK STATE LAW

17. Plaintiff repeats and realleges each and every allegation contained in the First, Second and Third Causes of Action as if fully set forth at length herein.

18. That the aforesaid actions, and resulting injuries to plaintiff, were due to the negligence of the City in the hiring, retention, and training of its employees, including the police officers involved in the assault and battery of the plaintiff.

THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1981, 1983, 1985, 1986 AND RESPONDEAT
SUPERIOR

19. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

20. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

21. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

22. Defendants assaulted, battered, and victimized Plaintiff in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said assault and battery would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

23. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

24. On or about February 23, 2016, Defendants did stop, seize, assault and commit a battery and grab the persons of the Plaintiff without reason to do so. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner.

25. The Plaintiff was assault, battered, and victimized without the Defendants' possessing probable cause to do so.

26. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from the use of excessive force during the arrest process.

27. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

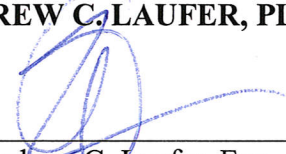
28. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable force, especially as here, has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest.

29. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering to his detriment.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
May 12, 2017

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
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ANDREW TOOMER,

VERIFICATION

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JEREMY
LUCCA, SHIELD #12731 OF EMERGENCY SERVICE
UNIT K9 and POLICE OFFICER LUIS FERNANDEZ,
SHIELD #22932 OF POLICE SERVICE AREA 2,

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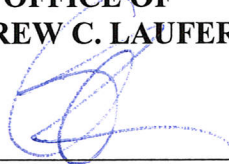
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ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff, ANDREW TOOMER, in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
May 12, 2017

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Year:

ANDREW TOOMER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JEREMY LUCCA,
SHIELD #12731 OF EMERGENCY SERVICE UNIT K9
and POLICE OFFICER LUIS FERNANDEZ SHIELD
#22932 OF POLICE SERVICE AREA 2

Defendants,

SUMMONS AND COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020
Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.
Dated,

Yours, etc.

Law Office of Andrew C. Laufer